



Bureau of Experts at the Council of Ministers
Official Translation Department

Anti-Harassment Law

Royal Decree No. M/96
May 31, 2018

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

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Anti-Harassment Law

Article 1

For the application of this Law, the crime of harassment shall mean any utterance, act, or gesture of a sexual nature which is made by a person by any means, including modern technology, and which impinges on another person's body, honor, or modesty.

Article 2

This Law aims to combat and prevent the crime of harassment, punish perpetrators, and protect victims, in order to preserve the privacy, dignity, and personal freedom of individuals guaranteed by Sharia and law.

Article 3

1. If a victim does not file a complaint or withdraws a filed complaint, this shall not preclude the competent authorities from taking any action deemed to serve public interest, in accordance with the provisions of the Law of Criminal Procedure and other relevant laws.
2. A person who witnesses a case of harassment may report the incident to the competent authorities to take action in accordance with paragraph (1) of this Article.

Article 4

1. Any person who, by virtue of his work, becomes privy to information related to any harassment case shall maintain the confidentiality of such information.
2. The identity of the victim may not be disclosed, except in the course of evidence collection, investigation, or trial.

Article 5

1. The relevant departments at government and private entities shall set the measures necessary to prevent and combat harassment in the workplace; such measures shall include the following:
 - a) A mechanism for receiving complaints within the entity.
 - b) The procedures necessary for verifying complaints and maintaining confidentiality thereof.
 - c) Publication of such measures and informing personnel thereof.
2. The relevant departments at government and private entities shall take disciplinary measures against any of their personnel in case of any violation of the provisions of this Law, in accordance with applicable procedures.
3. Disciplinary measures taken in accordance with this Article shall not prejudice the victim's right to file a complaint with the competent authorities.



Article 6

1. Subject to paragraph (2) of this Article and without prejudice to any Sharia prescribed penalty or any harsher penalty provided for in any other law, any person who commits a crime of harassment shall be subject to imprisonment for a period not exceeding two years and a fine not exceeding one hundred thousand riyals, or to either penalty.
2. The crime of harassment shall be punishable by imprisonment for a period not exceeding five years and a fine not exceeding three hundred thousand riyals, or by either penalty, in case of repetition or in any of the following cases:
 - a) The victim is a child.
 - b) The victim is a person with special needs.
 - c) The perpetrator has direct or indirect authority over the victim.
 - d) The crime occurs in a workplace, place of study, shelter, or care center.
 - e) The perpetrator and the victim are of the same sex.
 - f) The victim is asleep, unconscious, or in any similar state at the time of the crime.
 - g) The crime occurs in times of crisis, disasters, or accidents.

Article 7

1. Any person who incites, conspires with, or assists others in any manner to commit a crime of harassment shall be subject to the penalty prescribed for the crime.
2. Any person who attempts to commit a crime of harassment shall be subject to a penalty not exceeding half the maximum prescribed penalty.
3. Any person who submits a malicious report of a crime of harassment or maliciously claims to be a victim thereof shall be subject to the penalty prescribed for the crime.

Article 8

This Law shall enter into force from the date of its publication in the Official Gazette.



Appendix

Amendments

January 14, 2021 (Jumada II 1, 1442H)

Royal Decree No. M/48 provides for the following:

- Adding a paragraph to Article 6 to read as follows:

"3. The judgment issued specifying any of the penalties provided for in this Article may provide for the publication of a summary thereof at the expense of the convicted person in a local newspaper, or more, or through any other appropriate medium, depending on the gravity and impact of the violation, provided that publication is made after the judgement becomes final".